

The complaint

Miss M and Miss M complain that Aviva Insurance Limited (Aviva) caused damage to their bathroom when it carried out repairs following a claim on their home insurance policy and then also turned down a later claim they made for water damage to the bathroom.

Aviva is the underwriter of Miss M and Miss M's policy, so it's their insurer. This complaint is, in part, about the actions of Aviva's agents. As Aviva has accepted it's accountable for the actions of its agents, references in my decision to Aviva include its agents.

A representative has acted for Miss M and Miss M throughout this complaint. For ease of reference, though, I'll refer only to Miss M and Miss M in my decision.

What happened

Miss M and Miss M made a claim on their home insurance policy for an escape of water in December 2022.

Aviva accepted the claim and carried out extensive repairs to Miss M and Miss M's home. This included removing and replacing the asbestos ceiling in their bathroom.

In April 2023, Miss M and Miss M contacted Aviva after it had removed the asbestos ceiling to say the repairs had caused further damage to their bathroom. They said the shower enclosure door didn't close correctly, the shower riser was very loose, there was a scrape to the metal of the enclosure, there was damage to the sink unit door, the tiles at ceiling height were very dirty with black marks, the tiles in the shower enclosure area had a lot of random marks/lines and the sink and shower tray were very dirty. Miss M and Miss M also said their bathroom had been completely updated in October 2022, just two months before the escape of water.

Also in April 2023, Miss M and Miss M asked Aviva to inspect the bathroom walls. This was because they were concerned there could be water damage behind the bathroom tiles, the adjacent kitchen wall having been saturated during the escape of water.

Aviva responded to Miss M and Miss M saying the asbestos ceiling would've been removed in small sections in a controlled way, with all precautions taken to protect the work areas and with all these areas cleaned so no contaminants were left behind. Aviva said there was no evidence of markings on the tiles or of damage to the shower mixer and riser and no impact damage evident that could've caused the damage to the shower enclosure. Aviva acknowledged there was dust and debris in the bathroom but said this would've been caused by the various works that were undertaken throughout Miss M and Miss M's home. And it said the bathroom would be cleaned once all the work had been completed.

Aviva also arranged for Miss M and Miss M to get a copy of its asbestos report following the removal of the ceiling. This confirmed, among other things, that the working areas and waste/transit route were visually free of dust and debris in line with relevant health and safety standards when the work was completed.

In relation to possible water damage behind the bathroom tiles, Aviva said it had checked the moisture readings for the kitchen and bathroom following completion of the repairs and they showed these areas were dry.

A few months later, Miss M and Miss M arranged for their own contractor to inspect the bathroom. He said some bathroom tiles were loose and, when he removed them, it became evident the majority of tiles had lost their adhesion. He said one section in the shower area came crashing down, damaging the shower tray. He said he believed the substrate plaster had lost its grip to the brick wall, meaning the tiles were sitting like a sheet, stuck to each other only by the grout.

When Miss M and Miss M sent their contractor's comments to Aviva, it said it didn't believe the damage their contractor identified was due to the escape of water. Again, Aviva referred to the moisture readings it had taken and also said it had been able to carry out the drying out works from the other side of the bathroom wall. Having looked at the contractor's report, Aviva said, in its view the reason the bonding had failed was due to the quality of work when the new bathroom was installed in October 2022.

Miss M and Miss M disagreed with Aviva. They said the tiles suffered water ingress due to the escape of water, this being evident by the hollow sound when the tiles were tapped. They said water had seeped underneath the tiles and the adhesive had broken down. They said when the substrate becomes full of water, it can increase its volume and move the tiles – or it can become weaker, causing the tiles to move and crack. Miss M and Miss M say, given the sub-zero temperatures of December 2022 and the following winter months, this water would freeze and expand, causing the tiles to separate from the substrate.

Aviva said Miss M and Miss M's views didn't alter its position, which was that it was unable to offer any financial assistance for the bathroom damage.

Unhappy with this outcome, Miss M and Miss M brought their complaint to us. The investigator who looked at it didn't uphold it. He thought Aviva had reached its position on the complaint fairly and after considering all the evidence.

Miss M and Miss M have now asked for an ombudsman to review their complaint and that's why it has been passed to me.

Miss M and Miss M have another complaint with us about how Aviva settled their escape of water claim. For the avoidance of doubt, my decision here relates only to Miss M and Miss M's complaint about Aviva's repairs to their bathroom and to their later claim for water damage to their bathroom walls and tiles.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Having done so, I've decided not to uphold Miss M and Miss M's complaint. I'll explain why.

Looking first at Miss M and Miss M's complaint that Aviva's repairs damaged their bathroom, it's clear they aren't claiming under their policy for peril-related damage. Rather Miss M and Miss M are saying Aviva should pay to put right the damage they say it caused when carrying out claim repairs.

To uphold Miss M and Miss M's complaint on this point, I need to have evidence to support what they say. I can't make an assumption that, because Miss M and Miss M found damage

following the repairs, Aviva was likely to have caused it. Apart from what Miss M and Miss M say, I have no evidence – such as an expert’s report – to show me it’s likely something happened during Aviva’s repairs to cause the damage. I’ve looked at photos taken of the bathroom after the escape of water, before the ceiling was removed and after it was removed – but I can’t see that these show the specific areas where Miss M and Miss M subsequently found damage, so they don’t assist me. I’ve also looked at photos showing the damage itself. But these photos don’t show me what *caused* the damage. So the evidence I have is insufficient for me to conclude Aviva acted unfairly or unreasonably in refusing to pay to put right the damage Miss M and Miss M found.

Looking next at Miss M and Miss M’s claim for water damage to their bathroom walls and tiles, the onus is on them to show the escape of water most likely caused this damage. Miss M and Miss M have given us comments from their contractor, in which he describes the damage he found behind the bathroom tiles. But he doesn’t link his description of the damage to an escape of water. Indeed, he doesn’t say anything in his comments about what he thinks caused the damage. So his report doesn’t show me it’s likely an insured peril (ie an escape of water) caused the damage Miss M and Miss M claimed for.

Miss M and Miss M have themselves put forward a theory (which I’ve already referred to) that water filled the substrate and either weakened it or caused it to expand, displacing the tiles. But Miss M and Miss M aren’t experts. I can’t attach the same weight to their theory as I’d attach to an expert’s opinion showing that the escape of water was likely to have caused the damage. And in Miss M and Miss M’s case, there is no such expert opinion. So the evidence I have isn’t sufficient for me to conclude Aviva acted unfairly and unreasonably in turning down Miss M and Miss M’s claim for water damage to their bathroom walls and tiles.

My final decision

For the reasons I’ve given, I don’t uphold Miss M and Miss M’s complaint.

Under the rules of the Financial Ombudsman Service, I’m required to ask Miss M and Miss M to accept or reject my decision before 10 July 2024.

Jane Gallacher
Ombudsman